

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
MICHAEL BIDO,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. MICHAEL OCONNOR, and
OFFICERS JOHN AND JAMES DOE, names
presently unknowable by Plaintiff and meant to
designate additional offending officers,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 30, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Michael OConnor, Shield 003085 of the 48th Precinct
450 Cross Bronx Expressway, Bronx NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL BIDO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. MICHAEL OCONNOR, and
OFFICER[S] JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate additional
offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.,** complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF MICHAEL BIDO

1. At the time of the commencement of this action, plaintiff MICHAEL BIDO was a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about September 11, 2017 P.O. MICHAEL OCONNOR was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about September 11, 2017 at approximately 1:00 A.M., P.O. MICHAEL OCONNOR was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about September 11, 2017 OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable to Plaintiff but necessarily known to Defendants by virtue of their involvement with the subject incident, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about September 11, 2017 at approximately 1:00 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
9. That on or about September 11, 2017 at approximately 1:00 A.M., at or near the front of 570 East 191st Street, Bronx, New York, the plaintiff MICHAEL BIDO was improperly detained, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to detain, question, search, arrest or confine MICHAEL BIDO.

10. That at the above time and place P.O. MICHAEL OCONNOR was provided information that Plaintiff MICHAEL BIDO had engaged in conduct that was not illegal and P.O. MICHAEL OCONNOR falsely asserted that Plaintiff MICHAEL BIDO had nevertheless committed a crime.
11. That P.O. MICHAEL OCONNOR knew or should have known, as any reasonable officer would, that the conduct that was described as attributable to Plaintiff MICHAEL BIDO which constituted the basis of his arrest, did not constitute a crime of any kind.
12. That the defendants, their agents, servants and /or employees questioned and detained the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
13. That the defendants, their agents, servants and /or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
14. That the defendants, their agents, servants and /or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
15. That the defendants, their agents, servants and /or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without

any basis in law or fact, and Plaintiff being aware of his unlawful confinement, was thereby caused freight, shock, emotional distress and physical consequences.

16. That the defendants P.O. MICHAEL OCONNOR and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

17. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX035710 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of September 11, 2017, were dismissed by the Honorable Judge Jeffrey Rosenblueth on January 17, 2018, and the criminal proceedings were terminated in plaintiff's favor.

19. That all criminal charges brought against plaintiff were begun in malice without probable cause and without a reasonable belief that the prosecution would succeed.

20. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

21. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately one hundred and twenty eight days.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, without any probable cause or reasonable basis to do so, for nefarious, unlawful reasons, including to satisfy arrest quotas and subjugate and oppress that community without regard to whether the individuals were themselves engaging in any unlawful actions, and without probable or reasonable cause.

23. Thereafter officers of Bronx Police Precincts routinely engage in the use of practices such as illegal, unlawful questioning, detentions and arrests in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority and repeatedly providing false information and testimony, and without reprimand to the offending officers.

24. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

25. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

26. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

27. Further, said wrongful arrests are a direct result of the institutionalized practice, policy and procedure of promoting arrest quotas, also euphemistically known as productivity goals.

28. Plaintiff is aware of the following individuals subjected to the same or similar wrongful unlawful practice which entails the police deviating so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures in the investigation of alleged criminal activities: Isaiah Stewart on March 28, 2013 at 920 Prospect Avenue, Bronx, New York; Tyreik Gantt on August 8, 2013 at 762 Story Avenue, Bronx, NY; William DeJesus on January 3, 2014 at 555 Grand Concourse, Bronx, New York; and hundreds of other similarly wronged individuals necessarily known to Defendants.

29. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

30. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First

Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

32. That as a result of the foregoing, the Plaintiff MICHAEL BIDO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF MICHAEL BIDO

33. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.

34. That on November 30, 2017, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented upon the defendant CITY OF NEW YORK, by presenting a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the

manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

35. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

36. That on March 9, 2018 the plaintiff appeared at and give testimony at a General Municipal Law §50h conducted by the CITY OF NEW YORK.

37. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

38. That on or about September 11, 2017 at approximately 1:00 A.M., at or near the front of 570 East 191st Street, Bronx, New York, the Plaintiff MICHAEL BIDO was improperly stopped detained, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to stop, question, search, detain, arrest or confine MICHAEL BIDO.

39. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff of Due Process under Law.

40. That the defendants, their agents, servants and /or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
41. That the defendants, their agents, servants and /or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
42. That the defendants, their agents, servants and /or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without any basis in law or fact, and Plaintiff being aware of his unlawful confinement, thereby causing freight, shock, distress and physical consequences.
43. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
45. That as a result of the foregoing, the Plaintiff MICHAEL BIDO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF MICHAEL BIDO

46. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That on January 31, 2018, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented upon the defendant CITY OF NEW YORK, by presenting a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

48. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

49. That on March 9, 2018 the plaintiff appeared at and give testimony at a General Municipal Law §50h conducted by the CITY OF NEW YORK.

50. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

51. That the defendants P.O. MICHAEL OCONNOR and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the

prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

52. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

53. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX035710 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of September 11, 2017, were dismissed by the Honorable Judge Jeffrey Rosenblueth on January 17, 2018, and the criminal proceedings were terminated in plaintiff's favor.

54. That all criminal charges brought against plaintiff were begun in malice without probable cause and without a reasonable belief that the prosecution would succeed.

55. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

56. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made

court appearances to defend his liberty against these unjust charges over a period of approximately one hundred and twenty eight days.

57. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

59. That as a result of the foregoing, the Plaintiff MICHAEL BIDO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF MICHAEL BIDO

60. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 59 as though more fully set forth herein.

61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

62. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper investigation of the arrest of individuals.

63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff MICHAEL BIDO was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

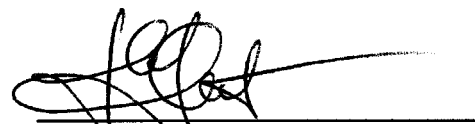
64. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action, inclusive of punitive damages, and

attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

November 30, 2018



By: **JONATHAN L. GLEIT, ESQ.**

Attorney for Plaintiff

MICHAEL BIDO

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Michael OConnor, Shield 003085 of the 48th Precinct
450 Cross Bronx Expressway, Bronx NY 10457

PLAINTIFF'S VERIFICATION

MICHAEL BITO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

X Michael Bido
MICHAEL BITO

*Sworn before me this
November 30, 2018*

[Signature]

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, *2019*